THE MARINE ENVIRONMENT PROTECTION COMMITTEE, RECALLING Article 38(a) of the Convention on the Internati on al Haritime Organization concerning the function of the Committee conferred upon it by international conventions Ear the prevention and con trol of marine pol lut ion, NOTING articl e 16 o fthe International Conve ntion fo rthe Preventi on of Poll ut ion from Shi ps, 1973 (hereinafter referre dto as the "1973 Convention") and article VI of th e Protocol of 1978 relating to the International Conventio nfor the Preven tio nof Pollution from Ships , 1973 (hereinafter referred to as the " 1978 Protocol") which together specify the amendment procedure of the 1978 Protocol and confers upon the appropriate body of the - Conventio nfor the Preven tio nof Pollution from Ships , 1973 (hereinafter referred to as the " 1978 Protocol") which together specify the amendment procedure of the 1978 Protocol and confers upon the appropriate body of the Organization the function of considering and adopti ng amendments t othe 1973 Convention, as modified by the 1978 Protocol (HARPOL 73/78), RECOGNIZING that when liqui dchemical wastes are transported by sea the ysho uld be car ried in accordance with the relevant international recommendation sor conventions, NOTING ALSO that it is hig hly desirable for the provisions of the IBC Code which are mandatory under HARPOL 73/78 and the 1974 SOLAS Convention t oremain identi cal under both conve ntions, HAVING CONSIDERED, at its thirty-third session , the amendments to the Code proposed by the Sub-Committee on Bulk Chemicals at its twenty-first sessio nand cir cula ted in acco rdance with article 16(2)(a) of the 1973 Conve nti on , 1. ADOPTS in accorda nce with article 16(2)(d) of the 1973 Convention amendments to the IBC Code, the text of which is se tout in the annex to the present resolution; - 1973 Conve nti on , 1. ADOPTS in accorda nce with article 16(2)(d) of the 1973 Convention amendments to the IBC Code, the text of which is se tout in the annex to the present resolution; 2. DETERMINES, in accordance with article 16(2)(f)(ii i) of the 1973 Convention, that the amendments shall be deemed to have been accepte don 1 January 1994, or on the da te dete rmined by the HSC on whi ch cor responding amendments Eor the purposes of the 1974 SOLAS Convention are deemed to have been accepted in accordance with arti cle VIII(b) (vi)(2) there of, whi cheve roccurs later, unless pri or t oth at da te, not le ss than one third of the Parties or the Parties, the combined merchant fle ets of which constitute not less than fif t yper cent o fthe gross to nnage of the worl d'smerc hant f lee t , have communica ted to the Organization their objec tions to the amendments; RESOLUTION MEPC.55(33) (adopted on 30 October 1992) ADOPTI